

GPU CLOUD PRODUCT PURCHASE AGREEMENT

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This GPU Cloud Product Purchase Agreement (this “Agreement”) is entered into and effective as of February 1, 2026 (the “Effective Date”), by and between Advanced Micro Devices, Inc., a Delaware corporation with its principal place of business at 2485 Augustine Drive, Santa Clara, California 95054 (“Seller”), and Meta Platforms, Inc., a Delaware corporation with its principal place of business at 1 Meta Way, Menlo Park, California 94025 (“Buyer”). Seller and Buyer are each a “Party” and collectively the “Parties.”

WHEREAS, Seller designs and manufactures high-performance graphics processing units intended for artificial intelligence training and inference workloads, including its MI355X-class accelerator products; and WHEREAS, Buyer operates large-scale data center infrastructure and wishes to procure such products from Seller on a multi-year committed basis to support its planned generative artificial intelligence deployments; NOW, THEREFORE, in consideration of the mutual covenants set forth herein, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties agree as follows:

1. DEFINITIONS

Capitalized terms used in this Agreement shall have the meanings set forth below or as otherwise defined herein. References to a “Section” or “Exhibit” are references to a Section of, or Exhibit to, this Agreement unless otherwise expressly stated. The words “include,” “includes,” and “including” shall be deemed followed by the words “without limitation.” The headings of Sections are inserted for convenience only and shall not affect the construction of this Agreement.

“Affiliate” means, with respect to any Person, any other Person that, directly or indirectly through one or more intermediaries, controls, is controlled by, or is under common control with such Person, where “control” means the possession, directly or indirectly, of the power to direct or cause the direction of the management and policies of a Person, whether through the ownership of voting securities, by contract, or otherwise.

“Business Day” means any day other than a Saturday, Sunday, or day on which commercial banks in San Francisco, California are authorized or required by law to be closed.

“GPU Unit” means one (1) Seller MI355X-class graphics processing unit accelerator, delivered in the form factor specified in Exhibit A and meeting the technical specifications attached thereto, together with the firmware, drivers, and reference software stack reasonably necessary to operate such accelerator for Buyer’s intended workloads.

“Committed Units” means the cumulative number of GPU Units that Buyer has agreed to purchase under this Agreement, totaling one hundred fifty thousand (150,000) GPU Units over the Initial Term, as further detailed in Section 3.

“Quarter” means a calendar quarter of three (3) consecutive months beginning on the first day of February, May, August, or November of each year during the Term. “Year” means the consecutive twelve-month period beginning on the Effective Date or any anniversary thereof.

“Base ASP” means the per-unit base average selling price set forth in Section 4. “Net ASP” means the Base ASP after application of the rebates set forth in Section 5 and any other adjustments expressly contemplated by this Agreement.

“Order” means a binding written purchase order issued by Buyer to Seller pursuant to this Agreement and the Quarterly Delivery Schedule. “Quarterly Delivery Schedule” has the meaning given in Section 3.

“Person” means any individual, corporation, limited liability company, partnership, trust, unincorporated organization, governmental authority, or other entity.

“Specifications” means the technical, performance, reliability, and compliance specifications applicable to GPU Units, as set forth in Exhibit A and as may be updated from time to time by Seller, provided that no such update shall materially diminish the performance characteristics of the GPU Units delivered under this Agreement.

2. TERM

The initial term of this Agreement shall commence on the Effective Date and continue for a period of three (3) years thereafter (the “Initial Term”), unless earlier terminated in accordance with Section 11. This Agreement shall not automatically renew, and any extension of the Initial Term shall require a written amendment executed by both Parties.

3. COMMITTED VOLUME AND DELIVERY SCHEDULE

During the Initial Term, Buyer shall purchase, and Seller shall sell and deliver, an aggregate of one hundred fifty thousand (150,000) GPU Units (the “Committed Units”) in accordance with the quarterly ramp set forth in this Section 3. The Parties acknowledge that the ramp reflects a gradual build-out in Year 1, a peak deployment in Year 2, and a managed taper in Year 3 as Buyer transitions to successor product generations.

The Committed Units shall be delivered in the following per-Quarter quantities (the “Quarterly Delivery Schedule”): in Year 1, seven thousand (7,000) GPU Units in the first Quarter, nine thousand (9,000) in the second Quarter, twelve thousand (12,000) in the third Quarter, and fifteen thousand (15,000) in the fourth Quarter, for a Year 1 total of forty-three thousand (43,000) GPU Units; in Year 2, eighteen thousand (18,000) in the first Quarter, twenty thousand (20,000) in the second Quarter, eighteen thousand (18,000) in the third Quarter, and sixteen thousand (16,000) in the fourth Quarter, for a Year 2 total of seventy-two thousand (72,000) GPU Units; and in Year 3, thirteen thousand (13,000) in the first Quarter, eleven thousand (11,000) in the second Quarter, seven thousand (7,000) in the third Quarter, and four thousand (4,000) in the fourth Quarter, for a Year 3 total of thirty-five thousand (35,000) GPU Units.

Buyer shall issue Orders no later than sixty (60) days prior to the beginning of each Quarter, specifying the desired delivery dates within such Quarter. Seller shall confirm each Order in writing within ten (10) Business Days of receipt. Buyer may, with at least forty-five (45) days’ prior written notice, request that up to fifteen percent (15%) of the quantity scheduled for any Quarter be shifted to the immediately following Quarter, subject to Seller’s good-faith capacity availability, provided that the aggregate Committed Units for the Initial Term shall not be reduced.

4. PRICING

The base average selling price for each GPU Unit shall be twenty-five thousand United States dollars (US\$25,000) per GPU Unit (the “Base ASP”), exclusive of taxes, duties, freight, and insurance, which shall be borne by Buyer in accordance with Section 8.

The Base ASP shall be firm for the Initial Term and shall not be subject to upward adjustment except as expressly set forth in this Agreement or by written amendment signed by both Parties. The Base ASP is subject to the downward adjustments set forth in Section 5 (volume rebates) and Section 9 (most-favored-nation price protection).

5. VOLUME REBATES

Seller shall provide Buyer with tiered volume rebates against the Base ASP based on Buyer’s cumulative purchases of GPU Units under this Agreement, measured from the Effective Date. The rebate rates are as follows: (i) for cumulative purchases above thirty thousand (30,000) GPU Units, three percent (3%) of the Base ASP; (ii) for cumulative purchases above seventy-five thousand (75,000) GPU Units, five percent (5%) of the Base ASP; and (iii) for cumulative purchases above one hundred twenty thousand (120,000) GPU Units, seven percent (7%) of the Base ASP.

Rebates earned pursuant to this Section 5 shall be settled annually in arrears, within forty-five (45) days following the end of each Year. The applicable rebate tier shall be determined by reference to Buyer's cumulative GPU Unit purchases as of the end of the relevant Year. Where Buyer's cumulative purchases cross a tier threshold during a Year, the higher tier shall apply, and Seller shall calculate the rebate payable in good faith based on volumes purchased during such Year.

Rebates shall be paid by Seller to Buyer by wire transfer of immediately available funds, or, at Buyer's election, applied as a credit against undisputed invoices then outstanding or next becoming due.

6. TAKE-OR-PAY OBLIGATION

For each Year of the Initial Term, Buyer shall purchase, or in lieu thereof pay for, a number of GPU Units not less than eighty percent (80%) of the aggregate Quarterly Delivery Schedule for such Year (the "Annual Minimum"). To the extent Buyer's actual purchases in any Year fall below the Annual Minimum for that Year, Buyer shall pay Seller, within sixty (60) days after the end of such Year, an amount equal to the Base ASP multiplied by the shortfall in GPU Units (the "Take-or-Pay Payment").

GPU Units paid for but not taken in a given Year shall be considered "Banked Units" and may be drawn down by Buyer in any subsequent Quarter during the Initial Term without further payment, subject to Seller's reasonable capacity availability. Banked Units that remain undrawn at the expiration of the Initial Term shall be forfeited without refund.

7. PREPAYMENT

On the Effective Date, Buyer shall pay Seller a non-refundable prepayment of five hundred million United States dollars (US\$500,000,000) (the "Prepayment") by wire transfer of immediately available funds. The Prepayment shall be held by Seller and applied against amounts invoiced to Buyer for GPU Units delivered under this Agreement, beginning with the first Order delivered after the Effective Date.

Seller shall apply a portion of the Prepayment against each invoice issued under this Agreement until the Prepayment is exhausted, with such portion equal to twenty percent (20%) of the invoiced amount or such other percentage as the Parties may agree in writing. Seller's monthly statements shall reflect the remaining Prepayment balance.

8. PAYMENT TERMS

Seller shall invoice Buyer upon shipment of GPU Units against each Order. Invoiced amounts shall be due and payable by Buyer within ninety (90) days after the date of the invoice (net 90), without offset or deduction except as expressly permitted under this Agreement. Buyer shall pay all undisputed invoices by wire transfer of immediately available funds to the account designated by Seller in writing.

Amounts properly disputed in good faith by Buyer shall be set forth in a written notice to Seller within thirty (30) days of the invoice date, and the undisputed portion shall be paid in accordance with this Section 8. Disputed amounts shall be addressed in accordance with the dispute resolution procedures of Section 15. Buyer shall be responsible for all applicable sales, use, value-added, and similar transactional taxes, and for freight, insurance, and customs duties associated with delivery of GPU Units.

9. PRICE PROTECTION

If, during the Initial Term, Seller enters into an agreement with any third-party customer for the sale of GPU Units of substantially comparable specifications at a per-unit base price that is lower than the Base ASP, in volumes substantially comparable to or smaller than the Committed Units, then the Base ASP applicable to GPU Units delivered to Buyer in the Quarter immediately following Seller's execution of such third-party agreement, and thereafter for the remainder of the Initial Term, shall be reduced to match the lower per-unit base price (the "MFN Price").

Adjustments under this Section 9 shall apply on a prospective basis only, and shall not entitle Buyer to refunds, credits, or retroactive adjustments with respect to GPU Units delivered prior to the effective date of the adjustment. Seller shall notify Buyer in writing within thirty (30) days following execution of any such third-party agreement that triggers this Section 9, and shall provide reasonable evidence of the lower per-unit base price, subject to redaction of competitively sensitive third-party information.

10. DELIVERY AND SUPPLY COMMITMENT

Seller commits to allocate sufficient manufacturing capacity, in good faith and on a Quarter-by-Quarter basis, to meet the Quarterly Delivery Schedule. Seller shall use commercially reasonable efforts to deliver each Order on or before the delivery date confirmed pursuant to Section 3, with title and risk of loss transferring to Buyer at the delivery destination set forth in the applicable Order.

In the event Seller fails to deliver, in any given Quarter, the GPU Unit quantity confirmed in respect of such Quarter, Seller shall pay to Buyer liquidated damages equal to two percent

(2%) of the aggregate Order value for such Quarter for each full week of delay, calculated from the originally confirmed delivery date. Liquidated damages payable under this Section 10 for any individual Quarter shall not exceed, in aggregate, ten percent (10%) of the Order value for such Quarter. The Parties agree that such liquidated damages represent a reasonable estimate of the harm that Buyer would suffer as a result of late delivery and are not a penalty.

11. TERMINATION

Either Party may terminate this Agreement for cause upon written notice to the other Party if the other Party materially breaches this Agreement and fails to cure such breach within thirty (30) days after receipt of written notice describing such breach in reasonable detail. Seller may terminate this Agreement for cause, or suspend deliveries, if Buyer fails to pay any undisputed amount within ninety (90) days following the applicable due date.

Buyer may terminate this Agreement for convenience, in whole but not in part, upon one hundred eighty (180) days' prior written notice to Seller. In the event of termination for convenience by Buyer under this Section 11, Buyer shall pay Seller, on or before the effective date of termination, a wind-down fee equal to twenty-five percent (25%) of the aggregate Base ASP of the Committed Units that remain undelivered as of the effective date of termination (the "Wind-Down Fee"). The Wind-Down Fee shall be Seller's sole and exclusive monetary remedy for Buyer's termination for convenience, and shall be paid net of any unapplied portion of the Prepayment then held by Seller.

12. LIMITATION OF LIABILITY

EXCEPT FOR (A) BREACHES OF CONFIDENTIALITY OBLIGATIONS UNDER SECTION 14, (B) A PARTY'S INDEMNIFICATION OBLIGATIONS WITH RESPECT TO THIRD-PARTY CLAIMS OF INTELLECTUAL PROPERTY INFRINGEMENT, AND (C) AMOUNTS OWED TO SELLER FOR DELIVERED GPU UNITS OR PURSUANT TO SECTION 6 OR SECTION 7, EACH PARTY'S AGGREGATE LIABILITY UNDER OR RELATING TO THIS AGREEMENT SHALL NOT EXCEED THE TOTAL AMOUNTS PAID OR PAYABLE BY BUYER TO SELLER UNDER THIS AGREEMENT DURING THE TWELVE (12) MONTHS IMMEDIATELY PRECEDING THE EVENT GIVING RISE TO THE LIABILITY.

Indemnification obligations of either Party with respect to third-party claims alleging that the GPU Units (in the case of Seller's indemnification) or Buyer's use thereof in breach of this Agreement (in the case of Buyer's indemnification) infringe any patent, copyright, trademark, or trade secret of a third party shall not be subject to the cap set forth in the preceding paragraph. NEITHER PARTY SHALL BE LIABLE TO THE OTHER FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES,

OR FOR LOST PROFITS OR LOST REVENUE, ARISING UNDER OR RELATING TO THIS AGREEMENT, EVEN IF ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

13. WARRANT ISSUANCE

Concurrently with the execution of this Agreement, Seller shall issue to Buyer a warrant to purchase shares of Seller's common stock pursuant to the Warrant Agreement of even date herewith by and between Seller and Buyer (the "Warrant Agreement"). The number of shares, exercise price, vesting conditions, and other terms of such warrant are set forth in the Warrant Agreement, which is incorporated herein by reference for purposes of construing the Parties' overall commercial arrangement.

The Parties acknowledge that the warrant constitutes consideration payable by Seller to Buyer in connection with this Agreement, and the financial and accounting effects of such warrant shall be evaluated by each Party in accordance with applicable accounting standards. Neither this Section 13 nor the Warrant Agreement shall be construed to modify any of the commercial terms set forth elsewhere in this Agreement.

14. CONFIDENTIALITY

Each Party (the "Receiving Party") agrees to maintain in confidence all non-public information disclosed to it by the other Party (the "Disclosing Party") in connection with this Agreement, including pricing, volumes, technical specifications, and business plans (collectively, "Confidential Information"), and to use such Confidential Information solely for purposes of performing its obligations and exercising its rights under this Agreement.

The obligations of confidentiality set forth in this Section 14 shall survive for a period of five (5) years following the expiration or earlier termination of this Agreement, except with respect to trade secrets, which shall be maintained in confidence for so long as such information retains its character as a trade secret under applicable law. Confidential Information shall not include information that (i) is or becomes publicly available without breach of this Agreement, (ii) is independently developed by the Receiving Party without reference to the Disclosing Party's Confidential Information, or (iii) is rightfully received by the Receiving Party from a third party without restriction.

15. REPRESENTATIONS AND WARRANTIES

Each Party represents and warrants to the other Party that: (i) it is duly organized, validly existing, and in good standing under the laws of its jurisdiction of organization; (ii) it has all requisite corporate power and authority to enter into this Agreement and to perform its obligations hereunder; (iii) the execution, delivery, and performance of this Agreement have been duly authorized by all necessary corporate action on its part; and (iv) this Agreement, when executed and delivered, will constitute the legal, valid, and binding obligation of such Party, enforceable against such Party in accordance with its terms, subject to applicable bankruptcy, insolvency, reorganization, moratorium, and similar laws affecting creditors' rights generally.

Seller further represents and warrants that GPU Units delivered hereunder will, for a period of twelve (12) months following delivery, conform in all material respects to the Specifications and will be free from material defects in materials and workmanship under normal use. Seller's sole and exclusive obligation, and Buyer's sole and exclusive remedy, for any breach of the foregoing warranty shall be, at Seller's option, repair, replacement, or refund of the purchase price of the affected GPU Unit. EXCEPT AS EXPRESSLY SET FORTH IN THIS SECTION 15, GPU UNITS ARE PROVIDED "AS IS" AND SELLER MAKES NO OTHER WARRANTIES, EXPRESS OR IMPLIED, INCLUDING ANY IMPLIED WARRANTIES OF MERCHANTABILITY OR FITNESS FOR A PARTICULAR PURPOSE.

Buyer represents and warrants that it will use the GPU Units in compliance with all applicable laws and regulations, including export-control and sanctions laws, and that it will not, directly or indirectly, export, re-export, or transfer GPU Units to any Person or destination prohibited by such laws.

16. FORCE MAJEURE

Neither Party shall be liable for any failure or delay in the performance of its obligations under this Agreement (other than obligations to make payments of amounts then due) to the extent such failure or delay is caused by events beyond such Party's reasonable control, including acts of God, war, terrorism, civil unrest, epidemic, pandemic, governmental orders, embargoes, earthquake, fire, flood, labor disputes, or interruptions in the supply of critical components or utilities (a "Force Majeure Event"), provided that the affected Party promptly notifies the other Party of the Force Majeure Event and uses commercially reasonable efforts to mitigate its effects.

If a Force Majeure Event continues for more than ninety (90) consecutive days, the Party not affected by such event may terminate the unperformed portion of this Agreement, in whole or in part, upon written notice to the affected Party, without liability except for amounts then due and payable. The Quarterly Delivery Schedule and the Annual Minimums shall be equitably

adjusted to reflect the duration and impact of any Force Majeure Event affecting Seller's ability to deliver.

17. GOVERNING LAW AND DISPUTE RESOLUTION

This Agreement shall be governed by and construed in accordance with the laws of the State of Delaware, without regard to its conflicts of law principles. Any dispute arising under or relating to this Agreement shall first be referred to senior executives of each Party for good-faith resolution. If such executives are unable to resolve the dispute within thirty (30) days of referral, the dispute shall be finally resolved by binding arbitration administered by the American Arbitration Association under its Commercial Arbitration Rules, with the seat of arbitration in Wilmington, Delaware.

Notwithstanding the foregoing, either Party may seek temporary or preliminary injunctive relief in any court of competent jurisdiction to prevent or restrain any actual or threatened breach of confidentiality or misappropriation of intellectual property. The prevailing Party in any arbitration or court proceeding shall be entitled to recover its reasonable attorneys' fees and costs.

18. INSURANCE

Each Party shall maintain, throughout the Initial Term and for a period of two (2) years following its expiration or earlier termination, insurance coverage in amounts customary for transactions of the size and nature contemplated by this Agreement, including: (i) commercial general liability insurance with limits of not less than five million United States dollars (\$5,000,000) per occurrence and ten million United States dollars (\$10,000,000) in the aggregate; (ii) products liability insurance with limits of not less than twenty-five million United States dollars (\$25,000,000) per occurrence and fifty million United States dollars (\$50,000,000) in the aggregate; (iii) workers' compensation insurance in accordance with applicable statutory requirements; and (iv) cybersecurity and data breach insurance with limits of not less than twenty million United States dollars (\$20,000,000) per occurrence.

Each Party shall, upon written request, provide to the other Party certificates of insurance evidencing the foregoing coverage. The maintenance of such insurance shall not limit or otherwise affect either Party's obligations or liabilities under this Agreement. The insurance maintained by either Party shall be primary with respect to its own acts and omissions and shall include a waiver of subrogation in favor of the other Party.

19. COMPLIANCE WITH LAWS AND EXPORT CONTROLS

Each Party shall comply with all applicable laws, regulations, and orders of any governmental authority having jurisdiction over its activities under this Agreement, including those relating to bribery, anti-corruption, export controls, sanctions, money laundering, data protection, and the environment. Without limiting the foregoing, each Party represents that it has implemented, and shall maintain throughout the Initial Term, a written compliance program reasonably designed to prevent violations of the U.S. Foreign Corrupt Practices Act of 1977, the U.K. Bribery Act 2010, and comparable anti-corruption laws of other jurisdictions.

Buyer acknowledges that GPU Units may be subject to the U.S. Export Administration Regulations and similar laws of other jurisdictions, including controls applicable to advanced computing items. Buyer shall not, directly or indirectly, export, re-export, or transfer any GPU Unit to (i) any destination subject to a comprehensive U.S. embargo, (ii) any Person designated on the U.S. Department of the Treasury's Specially Designated Nationals and Blocked Persons List or the U.S. Department of Commerce's Entity List, or (iii) any end use prohibited under applicable export-control laws, without first obtaining any required governmental authorizations.

20. AUDIT

Each Party shall maintain complete and accurate books and records related to its performance under this Agreement, including with respect to deliveries, invoicing, rebate calculations, and the application of the Prepayment, for a period of not less than five (5) years following the expiration or earlier termination of this Agreement. Each Party shall have the right, upon thirty (30) days' prior written notice and not more than once per calendar year, to engage an independent, nationally recognized accounting firm subject to customary confidentiality obligations to audit such books and records of the other Party solely for purposes of verifying compliance with the financial provisions of this Agreement.

If an audit conducted pursuant to this Section 20 reveals an underpayment or overpayment of any amount payable under this Agreement, the responsible Party shall promptly pay the deficiency or refund the overpayment, as applicable, together with interest at the rate of five percent (5%) per annum from the date the amount was originally due. If the audit reveals an underpayment or overpayment in excess of five percent (5%) of the amount properly due, the audited Party shall also bear the reasonable costs of the audit.

21. MISCELLANEOUS

Notices. All notices, requests, consents, and other communications required or permitted under this Agreement shall be in writing and shall be deemed duly given when delivered personally, three (3) Business Days after deposit with a nationally recognized overnight courier service with delivery receipt requested, or, in the case of notices among the Parties' in-house legal teams, when sent by electronic mail with confirmation of receipt, in each case addressed to the recipient at the address set forth on the signature page or such other address as such Party may designate by written notice.

Assignment. Neither Party may assign or delegate its rights or obligations under this Agreement, in whole or in part, without the prior written consent of the other Party, except that either Party may assign this Agreement, without consent, to an Affiliate of such Party or to a successor in connection with a merger, consolidation, or sale of all or substantially all of such Party's assets or business to which this Agreement relates, provided that the assignee assumes in writing the assigning Party's obligations hereunder. Any purported assignment in violation of this Section shall be null and void.

Entire Agreement; Amendment. This Agreement, together with the Warrant Agreement and the Exhibits attached hereto, constitutes the entire agreement between the Parties with respect to the subject matter hereof and supersedes all prior or contemporaneous oral or written agreements, communications, and understandings with respect thereto. No amendment, modification, or waiver of any provision of this Agreement shall be effective unless set forth in a writing signed by an authorized representative of each Party.

Severability. If any provision of this Agreement is held by a court or arbitral tribunal of competent jurisdiction to be invalid, illegal, or unenforceable, such provision shall be deemed modified to the minimum extent necessary to make it valid, legal, and enforceable, and the remaining provisions of this Agreement shall continue in full force and effect.

No Waiver. The failure or delay of either Party to exercise any right or remedy under this Agreement shall not constitute a waiver of such right or remedy, and no single or partial exercise of any right or remedy shall preclude any further exercise thereof. All rights and remedies under this Agreement are cumulative and not exclusive of any rights or remedies provided by law.

Counterparts; Electronic Signatures. This Agreement may be executed in one or more counterparts, each of which shall be deemed an original and all of which together shall constitute a single instrument. Signatures delivered by electronic means, including portable document format and electronic signature services, shall be deemed original signatures for all purposes.

Independent Contractors. The Parties are independent contractors, and nothing in this Agreement shall be construed to create a partnership, joint venture, agency, or employment relationship between them. Neither Party shall have the authority to bind the other Party or to incur any obligation on its behalf, except as expressly authorized in writing.

IN WITNESS WHEREOF, the Parties have caused this Agreement to be executed by their duly authorized representatives as of the Effective Date.

ADVANCED MICRO DEVICES, INC.

By: _____

Name: _____

Title: _____

META PLATFORMS, INC.

By: _____

Name: _____

Title: _____